

THIS AGREEMENT is dated

BETWEEN PARTIES

- (1) **Filipa Calado** of address (the “Author” which expression shall, where the context admits in the case of an authored or co-authored work, mean the author or authors as applicable and which shall, where the context and this agreement admit, include the Author’s assigns, heirs, executors or administrators) of the one part; and
- (2) **Bloomsbury Academic**, an imprint of **Bloomsbury Publishing Plc** of 50 Bedford Square, London, WC1B 3DP, UK (the “Publishers” which expression shall where the context admits include any publishing imprint subsidiary of or company associated with the Publishers and Publishers' administrators assigns or successors in business as the case may be) of the other part.

Commented [JM1]: Please confirm residential address

BACKGROUND

- (A) The Author is the original author of the literary work, and owner of the copyright in the literary work provisionally entitled:

“**QUEER CODE: RE-WORKING LANGUAGE TECHNOLOGIES**” (the “Work”)

the details of which are more specifically described in Clause 1 below.

- (B) The Publishers are publishers of books and book related materials (including, but not limited to electronic books and other digital products) and the parties have agreed that the Publishers shall publish the Work, on the terms and conditions set out below.

- (C) All capitalized terms shall have the meaning ascribed to them in Appendix 1 hereof (the “Definitions”)

OPERATIVE PART

1. DESCRIPTION OF THE WORK:

Working Title: Queer Code

Working Sub-title: Re-Working Language Technologies

Extent / Word Count of the Work: Between 50,000 (fifty thousand) and 65,000 (sixty-five thousand) words. The word limit shall include any notes, bibliography, and other preliminary and end matter, of a character and extent agreed by the Publishers.

Number of colour photographs or illustrations: N/A

Number of black and white photographs or illustrations: No more than 8 (eight) black and white photographs or illustrations to be supplied by the Author in reproducible quality (300 dpi minimum).

Delivery Date for the Work: No later than **31st March 2027**

Delivery Date for the photographs and illustrations: No later than **31st March 2027**

Failure to meet the above-mentioned Delivery Date(s) might result in cancellation of the Agreement in accordance with Clause 4.5 herein.

Series: Bloomsbury Studies in Digital Cultures

Series Editor Name(s): Anthony Mandal and Jenny Kidd

Abstracts and Keywords: The Author agrees to supply the Publishers with an abstract and keywords for the full text of the Work, and a separate abstract and keywords for each chapter.

Index: The Author agrees to supply the Publishers with an Index within three weeks after receipt by the Author of page proofs or other material from which the Index can be generated. If the Author fails to do so, the Publishers may prepare the Index and shall be entitled to be reimbursed by the Author, or at the Publishers' discretion to deduct from any sum due to the Author, the cost of such preparation.

2. MORAL RIGHTS

The Publishers acknowledge and agree that the Author is the original owner of the copyright in the original text of the Work supplied hereunder and the Author hereby: (a) asserts the Author's moral right to be identified as the author of the Work in accordance with sections 77 and 78 of the Copyright Design and Patents Act 1988 (as amended) (the 'CDPA 1988'); and (b) warrants that ownership of copyright in the Work has not been granted to any other party. The Author hereby waives the '*right of integrity*' conferred by Section 80 of the CDPA 1988 to enable the exercise of any of the subsidiary rights granted under this Agreement.

3. GRANT AND RESERVATION OF RIGHTS

3.1 In consideration of the mutual obligations of the parties under this Agreement (including payment by Publishers of the Advance/Fee under Clause 16 and Royalties set out in Schedule 1 which forms part of the Agreement) the Author hereby grants to the Publishers the sole and exclusive right and licence, **for the full legal term of copyright**, including all extensions, renewals, revivals and reversions thereof to produce, reproduce, adapt, publish, store, market, exploit, communicate, make available, rent, sell, distribute and display the Work or any adaptation, abridgement or part thereof, **in all countries, bases and locations throughout the world in all languages** and in all forms, formats and media whether now known or hereinafter invented (including but not limited to hardback and paperback, Electronic and Audio Formats and all other forms and formats set out in this Agreement) and the sole and exclusive right to exercise and/or to further licence the subsidiary or associated rights in the Work described in Clauses 2 (Subsidiary Rights) and 3 (Other Electronic Rights) of Schedule 1 in print, Audio Format and Electronic Format (to the extent that the nature of a particular right does not inherently preclude either format).

3.2 All rights not expressly granted to the Publishers under this Agreement (as well as "Public Lending Right") are reserved by the Author, but the Author will not exercise or authorise any party to exploit any reserved right in a way that will impair the value of any of the rights granted to the Publishers under this Agreement.

4. DELIVERY

4.1 The Author shall at the Author's expense write, compile or edit and deliver to the Publishers a manuscript of the Work in accordance with specifications set out in Clause 1 and this Clause 4.

4.2 The manuscript of the Work shall consist of:

- (a) one complete copy of the manuscript of the Work, as well as including abstracts and keywords for the entire Work and separately for each chapter, on an accessible electronic format to be agreed with the Publishers but in any event to be compatible with the Publishers' software in conformity with the template format and specifications agreed with the Publishers, the Publishers' Authorial policies and procedures and any synopsis, proposal or other material upon which the Work was commissioned or acquired; and

- (b) the Author shall provide all materials outlined in Clause 1 and such other material as may be agreed in correspondence to be necessary to illustrate the Work. All artwork or such other material must be supplied in accordance with the Publishers' instructions. The Publishers may review illustrative materials submitted by the Author for quality, relevance and value to the Work before approving their inclusion in the Work. The Publishers shall have the right to reject any such materials or to require of the Author at the Author's own expense such substitutions or amendments as may in the reasonable view of the Publishers be required. To the extent that any illustrative material provided by the Author requires redrawing or correction, the Author shall be responsible for costs incurred by the Publishers in doing so.
- 4.3 The Work shall be prepared in accordance in nature, scope, length, format and style with any proposal, specification or sample material agreed in writing, with all and any written guidelines and Authorial policies that the Publishers may issue to the Author from time to time and shall be delivered together with all illustrative and other material specified in Clause 1, including any captions to the photographs, illustrations, diagrams and maps, notes and appendices and a list of all material taken by the Author from other sources for inclusion in the Work together with any and all permissions obtainable by the Author under Clause 5.1.
- 4.4 The Author shall keep one copy of the Work and a copy of all other material supplied by the Author to the Publishers for inclusion therein for the Author's own reference.
- 4.5 Should the Author neglect to deliver the Work by the Delivery Date(s) in **Clause 1 herein** (or any other dates to be specified by the Publishers in writing), the Publishers may, at their sole discretion, (a) decline to publish the Work and terminate this Agreement with immediate effect, in which case the Author shall repay to the Publishers within 30 (thirty) days of such termination all monies paid to them under this Agreement or (b) appoint an appropriate and competent third party, which third party shall be in the Publisher's discretion, where the Author comprises two or more persons, may be one or more of the persons comprising the Author, to provide such material and the Publishers shall be entitled to be reimbursed by the Author for such costs incurred.
- 4.6 The Author acknowledges that timely delivery in accordance with the provisions of this clause is of the essence of this Agreement.
- 4.7 The Publishers' rights under Clause 4.5 above are without prejudice to any other rights or remedies available to it in law in the event of non-delivery by the Author (in particular but not limited to in the event of wilful non-delivery).
- 5. PERMISSIONS**
- 5.1 The use or inclusion in the Work of any Third Party Material (including without limitation quotations, photographs, pictures, diagrams, drawings, tables, graphs or maps and whether reproduced from print or electronic or other sources) shall be subject to the agreement of the Publishers. Unless otherwise agreed in writing by the parties the Author shall be solely responsible for obtaining all necessary licences, consents and permissions from all third parties who own rights in any material used in the Work in order to enable the Publishers to use the Third Party Material used or included in the Work as contemplated herein.
- 5.2 With reference to Clause 5.1 above, the Author shall provide a list of such extracts to the Publishers. For the avoidance of doubt, any Third Party Material consents and permissions for the Work must permit the use of such material in the Work in all languages, forms (including all electronic forms), editions and territories granted to the Publishers under Clause 3 of this Agreement. The Author shall provide the Publishers with copies of such written permissions and proof of copyright/permissions fees paid by the Author (if any) with respect thereto on the Delivery Date(s).
- 5.3 For the avoidance of doubt, the Author shall be responsible for all costs related to obtaining such Third Party Material consents and permissions (including the cost of copies of the Work, at the Author's discount, requested in lieu of, or in addition to, permission fees).

- 5.4 In the event that the Author fails to supply all necessary permissions, the Publishers shall have the right, but not the obligation, to obtain such permissions, in which case the Author shall pay any such costs incurred in the obtaining of such permissions within 30 (thirty) days of receipt of the Publishers' invoice. The Publishers may alternatively decline to use the relevant Third Party Material.
- 5.5 Nothing in this clause shall affect the Author's warranties and indemnity under this Agreement.
- 6. ACCEPTANCE**
- 6.1 The Publishers shall accept the Work provided that:
- (a) it is of the extent, character and scholarly or professional standard which has been agreed or might reasonably be expected and conforms in nature, scope, length, format and style to the specifications given in Clause 1 as well as conforming to the original book proposal and/or synopsis and/or other material submitted by the Author upon which the Work was commissioned and/or acquired and/or it complies with the warranties given to the Publishers hereunder, and/or any substantial Authorial work is not necessary. The Publishers will be at liberty to seek outside scholarly or professional opinion regarding the standard of the work;
 - (b) the Author delivers the Work by the Delivery Date(s) and in the form specified in Clause 4 above; and
 - (c) the Author has obtained all necessary permissions as set out in Clause 5 above.
- 6.2 If in the Publishers' sole opinion, the Work is not acceptable, the Publishers may either:
- (a) terminate this Agreement according to the provisions of Clause 4.5 hereof;
 - (b) as a condition of acceptance require the Author to undertake to revise, amend, expand or cut the Work as necessary (or to arrange for revisions cuts or amendments to be done at the Author's sole expense) and resubmit the revised manuscript and/or electronic manuscript and/or additional materials by a revised date to be specified by the Publishers in writing; or
 - (c) in the event that the Author does not wish or is unable for any reason to undertake such work or make the arrangement specified in Clause 6.2(b) herein the Publishers may employ a competent author or authors to carry out such work and shall be entitled to be reimbursed for any fee payable to such an author or authors by the Author according to the provisions of this Agreement.
- 6.3 In the event that the Author having undertaken to revise or amend the Work, fails to do so in accordance with the Publishers' requirements, or within the time specified by the Publishers (or after written notice from the Publishers if no time has been specified), the Publishers may terminate this Agreement according to the provisions of Clause 4.5 hereof.
- 6.4 The Publishers' rights of termination under Clause 6 are without prejudice to any rights or remedies available to it in law in respect of non-performance by the Author of the Author's obligations under this Agreement.
- 6.5 The Publishers' comments, requests for revisions or other matters dealt with in communications with the Author concerning the Work shall not be deemed acceptance or rejection of the Work by the Publishers. Acceptance of the Work shall be express and in writing.
- 6.6 Acceptance of the Work by the Publishers under this Clause 6 is subject always to the provisions of Clause 12.

7. COMPETITION

- 7.1 While the Work is in the course of preparation or in current publication the Author shall not, without the prior written consent of the Publishers (which shall not be unreasonably withheld) prepare, write, edit, contribute or compile (otherwise than for the Publishers) or cause or allow to be published any material which shall be an expansion or abridgement of the Work and which is in the Publishers' reasonable opinion of a nature likely to compete with or prejudice sales of the Work and/or the exploitation of any of the rights granted to the Publishers under this Agreement.
- 7.2 The Author undertakes that before publication the Author shall not broadcast or publish or cause to be broadcast or published any material about the Work without prior consultation with the Publishers.
- 7.3 Should the Work or any part thereof be mutually agreed between the Author and the Publishers to be published in a series the Author accepts and understands that the name(s) of any such series is the strictly reserved copyright of the Publishers and the Author undertakes that the Author shall not during the legal term of this Agreement or, on rights of the Work reverting to the Author thereafter, commercially use any such series name(s) or do anything that may damage any such series name(s) or be of a nature likely to prejudice the reputation of such series or prejudice sales of the Work or any works published in the series or any of Publishers' rights.

8. WARRANTIES AND INDEMNITIES

- 8.1 The Author warrants to the Publishers and their assignees and licensees that:

- (a) the Author has full power to enter into this Agreement;
- (b) the Author is the sole author of the Work;
- (c) the Author is the owner of all rights in and to the Work herein granted and has not granted any licences to any third party, including but not limited to any institution to which the Author is affiliated or by which the Author is employed;
- (d) the Author is the legal owner with full title guarantee of the copyright in the Work (apart from copyright material not owned by the Author but included in the Work with written permission of the relevant copyright holders);
- (e) the Work is an original work and has not previously been published in any form; that nothing in the Work violates or infringes in any way the rights of any third party, including but not limited to copyright, moral rights, performers' rights and any other legal rights;
- (f) all necessary permissions for the use of all copyright material quoted or reproduced in the Work have been granted for all editions including e-books and all electronic media, in all languages and in all territories throughout the world and any fees payable to the copyright owners have been or will be paid by the Author;
- (g) the grant of rights hereunder does not infringe in any way the rights of a third party;
- (h) none of the Work is plagiarised;
- (i) the Work contains nothing obscene or defamatory or in breach of any duty of confidentiality nor any other unlawful matter; that all statements in the Work purporting to be facts are true;
- (j) no recipes or formulae or instructions in the Work if followed accurately are injurious to the user;
- (k) the Work does not and will not breach the Official Secrets Act;
- (l) the Work is not and has not been the subject of any complaint, claim or legal proceedings; and

- (m) that the Work contains nothing in violation of the right of privacy of any person or institution.
- 8.2 The Author agrees to indemnify and keep the Publishers fully indemnified, defend and hold the Publishers harmless against all and any direct actions, demands, loss, costs, expenses, claims, proceedings or damages (including any legal expenses properly incurred and any compensation costs and disbursements and VAT paid by the Publishers on the advice of their legal advisors to settle any claim) incurred by the Publishers resulting from a breach of any of the terms of this Agreement, including but not limited to the warranties given in Clause 8.1 or arising from a claim alleging such a breach or of any negligence on the part of the Author in the preparation of the Work.
- 8.3 For the avoidance of doubt, but without prejudice to Clause 20.5 neither party shall be liable to the other for any indirect or consequential loss (including but not limited to loss of goodwill, loss of business, loss of anticipated profits or savings) arising out of or in connection with this Agreement.
- 8.4 The above warranties and indemnities shall survive the termination or expiry of this Agreement.
- 9. COPYRIGHT NOTICE AND INFRINGEMENT**
- 9.1 The Publishers undertake that the Author's name shall appear in its customary form with due prominence on each copy of the Work issued by the Publishers and shall print and/or display (as may be appropriate) on each such copy the following U.C.C copyright notice:
- © Filipa Calado 20****
- ** denotes year of first publication
- The Publishers' inadvertent failure to accord proper credit to the Author or the Publishers' error with respect to such credit shall not be deemed a material breach of this Agreement. The Publishers shall nevertheless endeavour to correct any such failure on any subsequent printings or reprints of the Work upon written notice by the Author.
- 9.2 For the avoidance of doubt, the copyright in the Work remains the property of the Author, subject to the rights granted to the Publishers herein.
- 9.3 The Author shall (at the expense of the Publishers) assist the Publishers in and if necessary join with the Publishers as a party to any proceedings in any part of the world to protect the copyright in the Work and all rights arising there from.
- 9.4 The Publishers shall have the sole right to issue proceedings for interlocutory relief against any infringement of copyright in the Work and shall not be obliged to seek the Author's consent before doing so.
- 9.5 It is agreed that if at any time the Publishers consider that the copyright in the Work has been infringed, and the Author after receiving written notice of such infringement from the Publishers refuses or neglects to take proceedings in respect of the infringement, the Publishers shall be entitled to take such steps as the Publishers may consider necessary for dealing with the matter, and if the Publishers desire to take proceedings the Publishers shall, on giving the Author a sufficient and reasonable security to indemnify the Author against any liability for costs, be entitled to use the Author's name as a party to such proceedings, but at the same time to control, settle or compromise as the Publishers think fit and in this event any sum received by way of damages shall belong to the Publishers. If the Author is willing to take proceedings and the Publishers desire to be joined with the Author thereto and agree to share the costs incurred the balance shall be divided equally between the Author and the Publishers. The provisions of this clause are intended to apply only in the case of an infringement of copyright in this Work affecting the interest in the same granted to the Publishers under this Agreement.

10 PROOF-READING AND AUTHOR'S CORRECTIONS

- 10.1 In the event that the Publishers approve the Work following delivery to them in accordance with the provisions of Clause 4 above, the Publishers shall edit and prepare the Work for publication (in any form contemplated by this Agreement) in such manner and style as the Publishers deem appropriate in their sole opinion, and may make changes to ensure grammatical accuracy and consistency and may make changes to ensure factual accuracy in consultation with the Author.
- 10.2 The Publishers shall not make substantive changes to the accepted Work without the Author's approval (such approval not to be unreasonably withheld or delayed).
- 10.3 The Author undertakes to respond promptly to any questions raised by the copyeditor or the Publishers during the copyediting of the Work.
- 10.4 If the Author fails to answer the queries promptly, then the Publishers may proceed with production and publication and are not obliged to make changes at proof stage to resolve the queries. If such corrections are made at proof stage, then the Publishers reserve the right to charge the Author for any additional correction costs incurred.
- 10.5 The Author undertakes to read, check and correct all proofs of the Work and to dispatch them to the Publishers within an agreed time not exceeding two weeks after receipt of the proofs by the Author failing which the Publishers may consider that the proofs have been approved and may continue with the production and publication of the Work. This clause does not apply to camera ready copy ("CRC") unless there are corrections made by the Publisher.
- 10.6 The Publishers reserve the right to charge the Author:
- (a) for the cost of the Author's alterations to the proofs (other than the correction of any typesetter's, printer's or Publishers' errors) should such cost exceed 7.5% (seven and one-half per cent) of the costs of setting the entire Work (independent of the cost of such alterations); or
 - (b) for the cost of correcting any errors resulting from the Author's failure to read and correct the proofs in accordance with Clause 10.5,

such costs to be paid by the Author. The Publishers shall, at their discretion, debit such costs to the Author's royalty account unless such account shall contain insufficient funds, in which case the Publishers may at its discretion invoice the Author in which case the Author shall pay such costs within thirty (30) days of receipt of the Publishers' invoice or the Publishers may charge such costs against any future sums accruing to the Author's royalty account.

11. RESPONSIBILITY FOR DAMAGE OR LOSS

While proper care will be taken of each part of the Work, and all copies, whether in digital format or any other format and including but not limited to the Delivery Materials, the Publishers shall not be responsible for any loss or damage caused to any part of the same whilst in the Publishers' possession or in transit or in the course of production.

12. CONTROL OF PUBLICATION AND CONTENTIOUS MATERIAL

- 12.1 Decisions relating to production and publication of the Work, including but not limited to the paper, printing, binding, text design, jacket and/or cover design, manner and extent of advertising, and the number and distribution of free copies of the Work, and the price, quantity, and terms of sale of the first and every later edition of the Work and the exploitation of the rights granted in Clauses 3 and Clauses 2 and 3 of Schedule 1 shall be left to the judgement and sole discretion of the Publishers.

- 12.2 The Publishers shall have the right to remove, or require the Author to remove, from the Work any material which in the opinion of themselves or their legal advisors violates any of the warranties in the above Clause 8.1 or is objectionable or is likely to be actionable at law but this shall in no way diminish the Author's liability for any such violations.
- 12.3 If the Author refuses to amend or delete such passages or material in the Work in accordance with Clause 12.2 above to the Publishers' satisfaction, or if the extent and nature of such problems is such as is incapable of remedy or renders the Work in the Publishers' reasonable opinion unpublishable, the Publishers may refuse to publish the Work (notwithstanding that the Work may otherwise have been accepted by the Publishers) and may terminate this Agreement with immediate effect upon written notice to the Author, in which case the Author shall repay to the Publishers any sums which have already been paid to the Author under this Agreement within 30 (thirty) days of the Author's receipt of the Publishers' invoice.
- 12.4 If, in the reasonable opinion of the Publishers (in consultation with Author), it is necessary for the Work to undergo a pre-publication legal read all costs associated with this legal read shall be borne equally between the Publishers and the Author. The Author shall be consulted regarding the need and projected cost of any pre-publication legal read. The said reading shall not alter the Author's liability under the Author warranties and indemnity contained in this Agreement.
- 12.5 The Publishers and the Author each agree to give the other party immediate notice of any claim, threat or demand in respect of the Work.
- 12.6 The Author agrees to cooperate fully in the defence of any such claim and the Publishers in conjunction with the Publishers' insurers shall have control of the defence of the claim in all respects including as to whether or not to repudiate liability to contest an action if proceedings ensue or to settle the claim upon such terms as the Publishers may be advised shall be final.
- 12.7 In the event of any claim being made the Publishers may in addition to any other remedies retain any sum due from the Publishers to the Author under this Agreement or any other agreement between the parties hereto until the final settlement of any such claim, and such sums retained by the Publishers shall be used by them to set off any liability of the Author to the Publishers.
- 12.8 If a claim does not result in the commencement of litigation within 12 (twelve) months following receipt of written notice of the initial claim, then the Publishers shall release to the Author all amounts which the Publishers have been withholding for that claim with the understanding that should such suit or proceeding subsequently commence the Publishers may again withhold payments due from the Publishers to the Author under this Agreement or any other agreement between the parties hereto. This provision shall survive the termination of this Agreement.
- 13. FREE COPIES AND AUTHOR PURCHASES**
- 13.1 The Publishers shall supply to the Author on publication **6 (six)** copies of the first print edition of the Work and **6 (six)** copies of each later print edition free of charge as well as 1 (one) copy of each of the E-book and audio edition of the Work if available ("Free Copies").
- 13.2 The Author shall be entitled to purchase further copies of the Work published by the Publishers at a discount of 40% off the published price for personal use, but not for re-sale unless previously agreed in writing by the Publishers.
- 13.3 All such additional copies are to be paid for by the Author on receipt of the Publishers' invoice and are not to be off-set against monies accruing under this Agreement.
- 13.4 The discount cannot be claimed in conjunction with any other discount or special offer.

13.5 The presentation of free copies and/or excerpts from the Work to the press or to other persons with the object of promoting the sale of the Work shall be at the discretion and expense of the Publishers.

14. PROMOTION

14.1 The Author hereby grants the Publishers, their licensees and other parties connected with the publication, promotion and sale of the Work the right to use the Author's name and likeness and extracts from the Work, and selections of the Work free of charge, in advertising, promotional and publicity relating to the Work, including by means of the internet, broadcasting or transmission or distribution in any medium, provided that the selections published, transmitted or displayed do not amount to more than 20% of the length of the Work, with further amounts requiring Author approval, such approval not to be unreasonably withheld or delayed ("Portions"). The Publishers may authorise internet retailers to provide a secure browser facility in order to aid sales of the Work. Such browser facility would allow end-users to search under key words and read Portions. The Publishers may include Portions for marketing purposes in marketing material in print, digital, audio and all other forms of media and multi-media (including, without limitation, podcasts, illustrative material (non-moving), interviews with the Author, sound, images, animation, interactivity and, for educational purpose only, additional material in any e-book format of the Work) (the 'Material'). The Publishers shall own the copyright in the Material.

14.2 The Author shall make themselves available to promote and publicise the Work as the Publishers may reasonably require, particularly during the 2 (two) weeks at the time of publication, the Author's agreed costs in such promotion to be borne by the Publishers.

15. PUBLICATION

15.1 The Publishers shall unless otherwise mutually agreed or unless prevented by circumstances beyond their control, at their own risk and expense publish the Work in such form as the Publishers may deem appropriate within **18 (eighteen) months** of accepting that the Work meets the requirements of Clauses 4 and 6 and subject to the Author's timely compliance with the Author's obligations under Clause 10 and with any revisions required by the Publishers as a result of readers' reports.

15.2 The Publishers may publish and distribute the Work under any of its imprints.

15.3 The Publishers shall have the sole and unrestricted right to make co-publication or special distribution arrangements for the Work.

16. FEE AND/OR ADVANCE

Clause intentionally deleted.

17. ACCOUNTS AND PAYMENT

17.1 Statements of sales shall be rendered annually up to the period ending 31 December next from first publication annually and shall pay the Author all monies due for such sales and for the exercise of the rights specified in Schedule 1 herein by the following 1st April.

17.2 If while the Work is in print the amount due to the Author in any accounting period shall fall below £50 (fifty pounds), this amount shall be carried forward to the end of the following accounting period.

17.3 The Author (or the Author's representative) or a firm of chartered accountants appointed to act on the Author's behalf shall have the right after a written request and reasonable notice to examine the records of account of the Publishers which relate to the sale of and receipts on the Work and to take copies and extracts of relevant parts of the accounting records. Inspection shall be carried out by appointment after reasonable written notice has been given during normal office hours and not more than once in any calendar year. The examination shall be at the Author's cost unless errors exceeding 5% (five per cent) of the sums paid to date shall be found to the Author's disadvantage in which case the Publishers shall rectify such error and shall pay an amount equal to the underpayment towards the cost of such examination.

- 17.4 The Publishers operate a self-billing system for the payment of royalties and to account for Value Added Tax. The Publishers therefore require details of the Author's VAT registration number where applicable. Where the Author fails to provide a VAT registration number the Publishers shall not pay VAT on any sums due under the terms of this Agreement.
- 17.5 The Publishers are obliged by the United Kingdom Inland Revenue to deduct income tax from royalties payable to Authors who reside outside the United Kingdom and who have not obtained exemption from the appropriate authorities. Should the Author fail to obtain such exemption in writing all sums due under the terms of this Agreement shall be paid after deduction of income tax.
- 17.6 The Publishers shall make all payments by electronic bank transfer to the bank account details to be provided by Author on the form sent with this Agreement upon signature of this Agreement:
- 17.7 The Publishers shall have the right to set aside as reserves against returns:
- (a) in respect of editions published in the United Kingdom and the United States of America: 20% (twenty per cent) of any royalties earned on the Publishers' hardback editions and 25% (twenty-five per cent) of any royalties earned on the Publishers' paperback editions of the Work as shown on the first royalty statement after publication and to withhold these sums up to the third royalty account thereafter following which all monies due shall be paid in full at the time of the next royalty statement; and
 - (b) in respect of physical audio versions: 25% (twenty-five per cent) of any royalties earned on the Publishers' physical audio versions as shown on the first royalty statement after publication and to withhold this sum up to the third royalty account thereafter following which all monies due shall be paid in full at the time of the next royalty statement.
- 17.8 The Author agrees:
- (a) to receive royalty statements produced by the Publishers on their behalf;
 - (b) not to raise invoices for VAT and royalties which have already been accounted for in their royalty statements; and
 - (c) to notify the Publishers immediately if the Author a) changes their VAT registration number, b) ceases to be VAT registered or c) sells their business or part of their business.
- 18. REVISION OF THE WORK**
- 18.1 The Author agrees to keep the Work up-to-date and to supply the updates within a time to be mutually agreed by both parties hereto, when requested in writing by the Publishers. Such revisions or changes shall be deemed to be part of the original Work and paid for by the royalties already provided hereinafter.
- 18.2 If at any time the Publishers decide to bring out a new edition of the Work, the Publishers shall first inform the Author of such intention.
- 18.3 If the Publishers consider it desirable, the Author shall revise the Work when requested by the Publishers.
- 18.4 The provisions of this Agreement shall apply to each revision of the Work by the Author as though that revision were the Work being published for the first time under this Agreement. Any grants or advances applying to the first or any previous edition shall not apply to any subsequent edition unless specifically agreed in writing by the Publishers except royalties for any revised edition of the Work shall be set against any unearned advance from the first or previous edition of the Work. Royalties will be computed separately from the first edition of the Work and not computed in escalating royalties as set out under Schedule 1 which forms part of the Agreement. In the event the Author has participated in the authoring of one or more prior edition(s) of the Work and:

- (a) the Author is unwilling or unable to provide a revision within a reasonable time, in the Publishers' judgment, after the Publishers has requested it;
- (b) the Publishers, in its discretion exercised in good faith, determines that for any reason the Author is not satisfactorily revising, or will not be able to satisfactorily revise, the Work;
- (c) the Author is deceased; or
- (d) the Publishers and the Author are not able to come to an agreement regarding the terms of such revision,

then the Publishers may have the revision prepared by a person or persons selected by the Publishers, which person or persons in the Publishers' discretion where the Author comprises two or more persons may be one or more of the persons comprising the Author, in which case the royalties otherwise payable to the Author in Schedule 1 herein shall be fifty percent (50%) of the rate specified in this Agreement for the first such revision, twenty-five percent (25%) of the rate specified in this Agreement for the second revision, and no royalties shall be payable with respect to any subsequent editions.

18.5 The Publishers may, at its sole discretion, continue to use the name of the Author in connection with the publication, sale or promotion of revisions, and may display in revisions of the Work, and in advertising, the name of the person or persons who revised the Work.

18.6 If the Author declines or neglects to prepare a revised edition of the Work after having been requested to do so by the Publishers, the Author shall not, without the prior written consent of the Publishers, participate in the preparation or publication of, or be otherwise interested in or connected with, or allow the Author's name to be used in connection with, any work on the same subject that may, in the Publishers' sole judgment, conflict or compete with the first or second revision of the Work, for which such revisions the Author is entitled to royalties pursuant to this Clause 18.

18.7 For the avoidance of doubt, whether the Work should be revised is at the sole discretion of the Publishers.

19. REVERSION

19.1 This Agreement shall terminate, and all rights granted herein (except any rights sub-licensed under Clauses 2 and 3 of Schedule 1 herein and with the exception of Clause 20.6 below) shall revert to the Author if the Work is not available, in whole or in part, in any format now known or hereinafter invented (including but not limited to electronic or print formats, either issued or licensed by the Publishers) and the Publishers fail to make the Work available in any format or publish a new edition of it within 9 (nine) months of the date of receipt of a written request from the Author to do so.

19.2 Rights shall revert to the Author if at any time the Publishers shall give notice to the Author that in their opinion the demand for the Work has declined below the level at which the Publishers can economically keep the book available in any format.

19.3 The Author shall then be entitled within one month to purchase whatever print copies the Publishers may have in hand at cost of production or purchase; provided always that any such reversion of the rights granted herein shall not prejudice the rights of the Publishers in any contracts, arrangement or negotiations already properly entered into by them with any third party nor prejudice any claim of the Author for damages nor prejudice the receipt of any monies already paid by or then due from the Publishers to the Author.

20. TERMINATION

20.1 Without affecting any other right or remedy available to it (including any other termination rights of either party as set out elsewhere in this Agreement), either party may terminate this Agreement with immediate effect by giving written notice to the other party if:

- (a) the other party fails to pay any undisputed amount due under this Agreement on the due date for payment and remains in default not less than 60 (sixty) days after being notified in writing to make such payment;
 - (b) the other party commits a material breach of any other term of this Agreement which breach is irremediable or (if such breach is remediable) fails to remedy that breach within a period of 60 (sixty) days after being notified in writing to do so;
 - (c) the other party (being an individual) is deemed either unable to pay its debts or as having no reasonable prospect of so doing, in either case, within the meaning of section 268 of the Insolvency Act 1986;
 - (d) the other party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with any of its creditors other than (being a company) for the sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;
 - (e) a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of that other party (being a company) other than for the sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;
 - (f) an order is made for the appointment of an administrator, or if a notice of intention to appoint an administrator is given or if an administrator is appointed, over the other party (being a company);
 - (g) a person becomes entitled to appoint a receiver over all or any of the assets of the other party or a receiver is appointed over all or any of the assets of the other party;
 - (h) the other party (being an individual) is the subject of a bankruptcy petition or order;
 - (i) any event occurs, or proceeding is taken, with respect to the other party in any jurisdiction to which it is subject that has an effect equivalent or similar to any of the events mentioned in clause 20.1(c) to clause 20.1(h) (inclusive); or
 - (j) any warranty given by the other party under this Agreement is found to be untrue or misleading.
- 20.2 The Author may terminate this Agreement by summary notice in writing to the Publishers if the Publishers are in material breach of any of the provisions of this Agreement and either (i) have failed to remedy such breach within 60 (sixty) days of notice to them from the Author of such breach if the breach notified to the Publishers is capable of remedy within 60 (sixty) days of such notice or (ii) have not agreed with the Author within that 60 (sixty) day period a programme to remedy such breach.
- 20.3 Without prejudice to its rights under any other provisions of this Agreement, the Publishers may terminate this Agreement by summary notice in writing to the Author if the Author is in material breach of any of the provisions of this Agreement and has failed to remedy such breach within 60 (sixty) days notice from the Publishers of such breach and in such an event shall have no further obligation or liability to the Author.
- 20.4 For the avoidance of doubt, the Publishers shall not be in breach of this Agreement if the Publishers are prevented from carrying out any of their obligations because of the Author's failure to meet the Author's specific obligations or warranties, in which case the Publishers will not be liable to make any further payments to the Author under this Agreement unless and until the failure has been rectified, if capable of rectification.

20.5 If at any time the Publishers conclude that any of the warranties at Clause 8.1 has been or may be breached, the Publishers shall have the right, without prejudice to the Publishers' other rights and remedies under this Agreement or in law, to refrain from or cease publication of the Work, terminate this Agreement, and recover from the Author costs incurred in connection with the manufacture of copies of the Work that cannot be sold as a result of such breach or termination.

20.6 Notwithstanding the foregoing provisions of this Agreement the rights hereby granted to the Publishers shall not revert to the Author unless any monies owing by the Author to the Publishers shall have been paid.

20.7 Clause intentionally deleted.

21. EFFECT OF TERMINATION

21.1 Upon termination of this Agreement in accordance with its terms, but subject to the provisions of Clause 21.2, all rights granted herein shall revert to the Author without further notice.

21.2 Termination of this Agreement for any reason shall be without prejudice and subject to:

- (a) either party's rights or obligations under this Agreement up to the date of termination;
- (b) the Publishers' right to continue to sell any stock of the Work in existence at the date of termination, subject to accounting to the Author in respect of such sales in accordance with the terms of this Agreement;
- (c) the warranties and indemnity given to the Publishers in Clause 8;
- (d) any right of the Publishers or of third parties in respect of contracts or obligations or subsidiary rights licences properly entered into by the Publishers with any such third party or electronic book or digital book distributor prior to the date of termination and the Publishers' entitlement to its share of Net Receipts or royalties from such contracts and/or subsidiary rights licences; and
- (e) the Publishers retain the rights in the design and typography of the Work.

22. FORCE MAJEURE

The time for fulfilment by the Publishers of any of their obligations under this Agreement (including the obligation to publish the Work) shall be suspended during and delayed for such period of time in which the fulfilment of such obligation is prevented or delayed by reasons or circumstances beyond the Publishers' control, including but not limited to war, strikes, lock-outs, fires, Acts of God, governmental restrictions or controls.

23. ASSIGNMENT

This Agreement shall be binding upon the assigns, heirs, executors and/or administrators of the Author and upon the administrators, assigns or successors in business of the Publishers. No assignment shall be binding upon either of the parties without the written consent of the other except that the Publishers shall have the right without consent to assign or transfer any or all of its rights and obligations under this Agreement to any member of the Publishers' Group or to any party which acquires all or substantially all of the Publishers' business and/or relevant publishing imprint, and/or division and/or subject area list of the Publishers. The Publishers shall be entitled to exploit the rights granted hereunder under any of Publishers' imprints or any imprint of any member of the Publishers' Group.

24. NOTICES

24.1 Any notices required to be given under this Agreement shall be sent by personal delivery, first class or recorded post or e-mail to the addresses stated above or as otherwise specified by the relevant party by notice in writing to each other party.

24.2 If a notice has been properly sent or delivered in accordance with this clause, it will be deemed to have been received as follows:

- (a) if delivered personally, at the time of delivery;
- (b) if sent by pre-paid first-class post or recorded delivery, 9.00 am on the second business day after posting; or
- (c) if sent by e-mail, at the time of delivery.

25. ENTIRE AGREEMENT

The terms of this Agreement constitute the entire agreement and understanding of the parties and supersede any previous agreement, arrangement or understanding (written or oral) between the parties in respect of its subject matter. Each of the parties acknowledges and agrees that in entering into this Agreement it does not rely on any statement not contained herein.

26. VARIATION

The terms of this Agreement shall not be varied unless such variation is set out in writing and signed by both Parties.

27. WAIVER AND SEVERANCE

27.1 A waiver of any right under this Agreement is only effective if it is in writing and it applies only to the Party to whom the waiver is addressed and the circumstances for which it is given.

27.2 If any provision (or part of a provision) is found by any court or administrative body of competent jurisdiction to be invalid, unenforceable or illegal, the other provisions will remain in force. If any invalid, unenforceable or illegal provision would be valid, enforceable or legal if some part of it were deleted, that provision will apply with whatever modification is necessary to make it valid, enforceable and legal.

27.3 No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it preclude or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall preclude or restrict the further exercise of that or any other right or remedy.

28. CLAUSE INTENTIONALLY DELETED

29. THIRD PARTIES

This Agreement does not create any right enforceable by any person not a party to it except that a person who is the permitted successor to or assignee of the rights of a party is deemed a party to this Agreement.

30. CONFIDENTIALITY

The Author shall not disclose to any third party (except the Author's professional legal advisors and accountants on the understanding that such persons and/or companies shall not disclose any of the following to any third party) any confidential information, business, finance or future plans of the Publishers including but not limited to the terms and conditions of this Agreement.

31. JOINT AUTHOR

Clause intentionally deleted.

32. AGENT

Clause intentionally deleted.

33. OPTION

Clause intentionally deleted.

34. GOVERNING LAW AND INTERPRETATION

34.1 The headings in this Agreement are for convenience only and shall not affect its interpretation and nothing contained in this Agreement shall be construed as constituting a partnership, joint venture or contract or relationship of employment or agency between the parties.

34.2 This Agreement and any dispute or claim arising out of or in connection with it or its subject matter shall be governed by and construed in accordance with the laws of England and Wales.

34.3 Both parties submit to the exclusive jurisdiction of the English courts in relation to any dispute concerning this Agreement, but the parties are also entitled to apply to any court worldwide for injunctive and other remedies in order to protect or enforce their Intellectual Property Rights.

34.4 The parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).

35. NO INJUNCTIVE RELIEF

The Author waives any and all right to injunctive relief against the Publishers in the event of any dispute with the Publishers, and the Author's sole remedy in such a dispute shall be at law, provided that in no event shall the Author be entitled to consequential or special damages and/or lost profits.

Agreed and Accepted

Signed by

For and on behalf of
Bloomsbury Publishing Plc

Signed by **Filipa Calado**

Date

SCHEDULE 1

Royalties

1.1 The Publishers shall pay to the Author the following rates of royalty in respect of the Publishers' exploitation of the rights granted to them hereunder ("Royalties"):

Description	Percentage of Publishers' Net Receipts (%)	Notes
On sales of Publishers' casebound/hardback editions within the territories granted herein (should one be published)	2	
On sales of the Publishers' limpbound/paperback editions within the territories granted herein (should one be published)	6% on the first 500 (five hundred) copies sold, 8% on the next 500 (five hundred) copies sold, and 10% on all copies sold thereafter	
On individual sales of the E-Book edition of the Work, save as provided under Clause 3 below	6	
Exploitation in any Electronic Format of omnibus and anthology editions (including without limitation custom textbooks) which include the Work (in part or in whole):	6	such share to be calculated on the basis of the proportion which the Work or the relevant part of the Work represents of the entire omnibus and/or anthology
Sales of Physical Audio Products	2.5	
Sales of Digital Audio Products	2.5	
On all copies sold outside normal trade channels (including but not limited to door-to-door, premium, own-brand and mail order):	2.5	
Sales of a special edition or editions published either by the Publishers under their own imprint or by another publisher under licence from the Publishers in any format:	5	
On all bulk sales of hardback or paperback copies or sets of sheets sold to a book club or comparable organization anywhere in the world:	5	
On Co-Edition Sales	5	
Exploitation in any print format of omnibus and anthology editions (including without limitation custom textbooks) which include the Work (in part or in whole):	5	such share to be calculated on the basis of the proportion which the Work or the relevant part of the Work represents of the entire omnibus and/or anthology.
Sales of the Publishers' large print editions of the Work	5	

1.2 The Publishers shall have the right at any time, and in their sole discretion, to discontinue publication of the Work should it in their sole opinion cease to have any remunerative or commercial value and to dispose of surplus stock at the price and in the manner the Publishers determine appropriate (including by remaindering or destroying surplus stock).

1.3 For the avoidance of doubt, the parties hereby agree that no royalties shall be paid by the Publishers to the Author on presentation copies of the Work including review copies given away for promotion; on copies damaged or destroyed by fire, water, enemy action or any other circumstances outside the Publishers' control; on stolen copies; on copies purchased by the Author for resale, or on copies sold at or below a price equal to the cost of manufacture.

1.4 Royalties and other fees shall be paid to the Author only in respect of sums actually received by the Publishers in connection with the exploitation of rights granted to the Publishers hereunder.

1.5 Sales on which Royalties are payable are net of all returns bad debts or credit notes. The Publishers reserve the right not to pay Royalties until payment has been received for the copies sold.

2. SUBSIDIARY RIGHTS

2.1 The Author grants to the Publishers the sole and exclusive right during the period of this Agreement to exercise and/or to license others to exercise, all the subsidiary and associated rights in the Work granted by Clause 3 and the Publishers shall pay the Author the applicable percentages set out in Clauses 2.2 and 3.2 below of Publishers' Net Receipts from the exercise of such rights.

2.2 The Publishers shall pay to the Author the following percentages of the Publishers' Net Receipts arising from the sale of the licence of the subsidiary rights granted by Clause 3:

(a) Anthology and Quotation Rights	20%
(b) Audio Format Rights	20%
(c) Book Club Rights (royalty exclusive)	20%
(d) Digest Book Condensation Rights	20%
(e) Digest Journal/Magazine Rights	20%
(f) Dramatisation, Film and, Documentary, Rights	20%
(g) Educational and Simplified Reprint Rights	20%
(h) Electronic Format Rights	20%
(i) First Serial Rights	20%
(j) Large Print Rights	20%
(k) Merchandising Rights	20%
(l) Micrography Reprography Rights	20%
(m) Multimedia Adaptation Rights	20%
(n) One Shot Rights	20%
(o) Radio, Television Undramatised Readings	20%
(p) Reprint Rights	20%
(q) Second Serial Rights	20%
(r) Translation Rights (royalty exclusive)	20%
(s) U.S. Rights (royalty exclusive)	20%
(excluding publication of the Work by Bloomsbury Publishing Inc.)	20%

2.3 The Publishers may authorise, free of charge, the conversion of the Work to Braille or its recording for the sole use of the blind and print-handicapped or shall pay to the Author 20% of the Publishers' Net Receipts should the Publishers receive a fee for such authorisation.

2.4 Where rights in the Work set out under Clause 2.2 are sub-licensed to a third party for exploitation by such third party together with rights in other works controlled by the Publishers and the Publishers do not receive separate payment in respect of the Work, the Author shall receive a pro-rated share of the applicable royalty percentage (depending on the particular rights licensed) of the Publisher's Net Receipts arising from the sale of such rights, such share to be calculated on the basis of the proportion which the Work represents of the total number of works licensed to the relevant third party.

2.5 The Publishers shall have absolute discretion as to the exercise and/or sale of and/or other dealings in the rights granted under this Clause 2 of the Schedule 1.

2.6 Any other rights now in existence or which come into existence during the legal term of copyright: a percentage to be mutually agreed in each instance.

3. OTHER ELECTRONIC RIGHTS

3.1 The Publishers may exploit the Work in whole or in part (including by way of licensing to third parties) alone or in conjunction with any other work or content, including but not limited to by way of inclusion of the Work in Digital Aggregated Products and in any other electronic or digital product developed and/or made available by the Publishers (or its licensees) through any means of storage, transmission, communication or copying now known or hereafter devised. The royalties payable to the Author set out in Clauses 3.2 and 3.3 below.

3.2 Where Electronic Rights in the Work are sub-licensed to a third party for exploitation by such third party together with rights in other works controlled by the Publishers and the Publishers do not receive separate payment in respect of the Work:

A pro-rated share of **20% (twenty per cent)** of the Publisher's Net Receipts arising from the sale of such rights, such share to be calculated on the basis of the proportion which the Work represents of the total number of works licensed to the relevant third party.

3.3 Where the Work is included in an E-Book Collection, the royalty payable to the Author with respect to such exploitation of the Work shall be a pro-rated share of 5% (five percent) of the Publishers' Net Receipts from the exploitation of such E-Book Collection, such share to be calculated on the basis of the total number of E-Books in the E-Book Collection and the proportion which the Work represents of the total.

3.4 No royalties will be payable to the Author in respect of the inclusion of the Work (in whole or in part) in a Hybrid Digital Product but the Author shall receive as consideration for such inclusion and exploitation of the Work by the Publishers six months gratis access to the relevant Hybrid Product.

Appendix 1

DEFINITIONS

In this Agreement the following capitalised words and expressions shall, unless expressly stated otherwise, have the following meanings:

“Abstracts and Keywords” means a synopsis of the main arguments and conclusions of the entire book, and separately of each chapter, and between 5 and 10 keywords for the book and separately for each chapter must be submitted by the Author with the delivery materials. Abstracts and keywords are required to ensure that the book is discoverable online, including on the Publisher’s digital platform.

“Ancillary Materials” means any and all supplementary and/or supporting material created in connection with the Work (including but not limited to solutions manuals, test items, instructor’s manuals, answer keys, tapescripts, videos, tutorials, simulations and other such teaching aids, software, multimedia teaching and learning products, web pages and other like content).

“Associated Company” shall have the meaning attributed to that term in sections 449 of the Corporation Tax Act 2010.

“Audio Format” means all audio formats of the Work (including but not limited to abridged and unabridged voice recordings of the Work and audio versions of the Work produced by means of synthesised speech or text to speech functionality) whether in physical form (including but not limited to phonographic record, compact disk and cassette or other pre-recorded product format capable of being delivered physically and played direct on equipment designed for the purpose) (“Physical Audio Product”) or in Electronic Format (“Digital Audio Product”).

“Audio Products” means Physical Audio Products and Digital Audio Products collectively.

“Audio Format Rights” means the right and licence to exploit the Work in Audio Format.

“Co-Edition” means where a separate agreement is made for the publication of the Work in English or other language by a third party publisher that is not within the Publishers’ own Group under which copies of the Work are to be supplied to such third-party publisher bound (hardback or paperback) or in sets of sheets on a royalty-inclusive basis.

“Digest Journal/Magazine Rights” shall mean the right to publish an abridgement of the complete Work in a single issue of a journal, periodical or newspaper.

“Digest Book Condensation Rights” shall mean the right to publish a shortened form of the Work in volume form.

“Digital Aggregated Product” means a digital product, platform or database comprising content and works from multiple sources and in multiple formats (including without limitation written text, images and audio visual content) and which is made available by Electronic Means or Device to third party users on a subscription or perpetual access basis, as may be developed by the Publishers (or by a third party under licence from the Publishers) for commercial exploitation and including without limitation E-Book Collections and Hybrid Digital Products.

“Dramatisation, Film and Documentary Rights” shall mean dramatisation of the Work on stage, film, radio or television and videograms thereof, including transmission by cable, satellite or any other medium.

“E-Book” means an electronic or digital edition of the Work (including any illustrative material) with or without accompanying audio-visual, interactive or multimedia content or other enhancements) which is intended to make the Work available to the public for reading in Electronic Format. Where the term “E-Book” is used in this Agreement in connection with a work other than the Work, the definition set out here shall apply mutatis mutandis to such work.

“E-Book Collection” means a collection of E-Books comprising the Work in conjunction with E-Books of other works and which is sold or licensed to third party users and customers as a single, discrete product or package.

“Educational and Simplified Reprint Rights” means the right to publish an educational edition of the Work, with notes and/or other educational apparatus, or in simplified language in hard or soft covers.

“Electronic Format” means the Work in any electronic or digital format whether now known or hereinafter developed (whether in whole or in part, including without limitation in abridged, condensed or adapted form, sequentially or non-sequentially, on its own or in combination with other works, and with or without accompanying audio-visual, interactive, multimedia content or other enhancements or additions). Where the term “Electronic Format” is used in this Agreement in connection with a publication, work or content other than the Work, the definition set out here shall apply mutatis mutandis to such publication, work or content.

“Electronic Format Rights” means the right and licence to exploit the Work in Electronic Format.

“Electronic Means or Device” means any medium or system for electronic or digital reproduction, publication, storage, distribution, processing, transmission, performance or display of audio and visual content, data or information, whether now known or hereafter developed, including without limitation digital optical and magnetic information storage and retrieval systems, any online, electronic or other (including but not limited to satellite) communications or transmission system or network and any device which can receive, store, display, play or perform electronic, digital or machine readable media and content (including without limitation a dedicated e-reader, mobile or smartphone, handheld device, personal computer or laptop) whether now known or hereafter developed .

“First Serial” means the right to publish one or more extracts from the Work in successive issues of a periodical magazine or newspaper (whether such magazine or newspaper is published in Electronic Format or in hard copy) beginning before publication of the Publishers' first edition of the Work in volume form).

“Hybrid Digital Product” means a Digital Aggregated Product which comprises of E-Books together with a substantial amount of additional miscellaneous content and tools, including without limitation major reference works, image collections, audio-visual content and articles and which is sold as a single product or package.

“Large Print Rights” shall mean the right to publish a straight reprint of the complete Work in large type, primarily for readers with visual handicaps, in hard or soft covers.

“Merchandising Rights” shall mean the right to exploit characters, movements, representations, names, logos, artwork and events in the Work through the manufacture licensing and/or sale of goods and services, including but not limited to drawings, calendars, toys, games, novelties, figures, souvenirs, trinkets, fabrics, clothing, food and drinks.

“Multimedia Adaptation Rights” shall mean works in any non-print media that derive from the Work, and utilize the Work as a source or basis for development of such multimedia adaptations, including video games and online games), not including E-Book as specified above.

“Net Receipts” shall mean the amounts actually received by the Publishers from the exploitation by the Publishers of the rights granted to them in the Work less (i) allowances for credits/returns, any and all commissions (including without limitation sales agent, distributor and sub-agents’ commissions) and VAT or other applicable sales taxes or (ii) any withholding or local tax required by law and any bank transfer fees, as applicable). In respect of sales of the Work from one entity within Publishers’ Group to another entity within Publishers’ Group for onward sale, Net Receipts shall mean the sums received by the former from the latter.

“One-Shot Periodical Rights” shall mean the right to publish the complete Work in a single issue of a journal, periodical or newspaper.

“Public Lending Right” means the right of contributors to books to receive payment from government funds for the free borrowing of their books from public libraries in the UK as established by the Public Lending Right Act 1979 and as administered by the Public Lending Right office <http://www.plr.uk.com>.

“Publishers’ Group” means any subsidiary, subsidiary undertaking or holding company of the Publishers, and any subsidiary or subsidiary undertaking of any such holding company for the time being.

“Radio, Television Undramatised Readings Rights” shall mean the right to read from the text of the Work or to show still illustrations from the Work, whether on radio, television, by Internet streaming or other broadcast.

“Reprint Rights” shall mean the right to publish a straight reprint of the Work, without notes or annotations, in hard covers and paperback.

“Sales” or “sales”: The reference to “Sales” or “sales” in this Agreement shall include all forms and manner of distribution and dissemination of the Work (including but not limited to distribution of the Work on a perpetual access basis or by way of rental, lending and subscription models).

“Second Serial” means the right to publish one or more extracts from the Work in successive issues of a periodical magazine or newspaper (whether such magazine or newspaper is published in Electronic Format or in hard copy) beginning either after publication of the Publishers' first edition of the Work in volume form or after publication of the first extracts by the holder of the first serial rights within the same or other territory.

“Work” means the work described in Clause 1 of this Agreement (and any new editions of the Work) written by the Author under this Agreement together with any abridgements, adaptations, or digital versions of the Work.